

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Evan Tims	Team: Squad #05	CCRB Case #: 201908325	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Friday, 09/13/2019 11:12 PM	Location of Incident: in front of 361 Sutter Avenue	18 Mo. SOL 10/28/2021	Precinct: 73
Date/Time CV Reported Sat, 09/14/2019 2:20 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 09/20/2019 11:15 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Joseph Sorrentino	15954	957890	PSA 2
2. POM Volodymyr Burdeynyy	14915	954580	PSA 2

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Dominique Armenio	18629	961626	PSA 2
2. LT Favio Quizhpi	00000	948119	PSA 2
3. POM Abir Noor	21625	959847	PSA 2
4. SGT Richard Galvez	02492	947013	PSA 2
5. POM John Espinal	19909	962383	PSA 2
6. POM Anthony Pascual	16321	962000	PSA 2
7. POM Gavier Almanzar	09934	956380	PSA 2
8. POM Franklyn Lalla	00774	964600	PSA 2

Officer(s)	Allegation	Investigator Recommendation
A . POM Volodymyr Burdeynyy	Force: Police Officer Volodymyr Burdeynyy used physical force against § 87(2)(b)	A . Exonerated
B . POM Joseph Sorrentino	Force: Police Officer Joseph Sorrentino used physical force against § 87(2)(b)	B . Exonerated

Case Summary

On September 14, 2019, Sergeant Richard Galvez of PSA2 filed this complaint by phone on behalf of § 87(2)(b) generating original log number 19-34390. The CCRB received the complaint on September 20, 2019.

On September 13, 2019, at approximately 11:12 p.m., in front of 361 Sutter Avenue in Brooklyn, Police Officer Volodymyr Burdeynny of Police Service Area 2 approached § 87(2)(b) grappled with him, and bearhugged him while attempting to arrest him § 87(2)(b) (**Allegation A: Force, exonerated**). Police Officer Joseph Sorrentino approached and brought § 87(2)(b) to the ground by pulling § 87(2)(b) legs out from under him (**Allegation B: Force, exonerated**). § 87(2)(b) was arrested § 87(2)(b).

The investigation obtained BWC footage from 11 officers, including PO Sorrentino and PO Burdeynny (**BR01**). The investigation also obtained security camera footage from a nearby business depicting the incident (**BR02**, summarized at **BR03**). All references to video evidence below refer to the time stamp in the video player, not the on-screen clock embedded in the video itself.

This case was reassigned from SI Julian Phillips to the undersigned on February 14, 2020.

Findings and Recommendations

Allegation (A) Force: Police Officer Volodymyr Burdeynny used physical force against § 87(2)(b)

Allegation (B) Force: Police Officer Joseph Sorrentino used physical force against § 87(2)(b)

It is undisputed that PO Burdeynny instructed § 87(2)(b) to put his hands behind his back before attempting to grab his hands or wrists. It is further undisputed that § 87(2)(b) pulled his arms out of PO Burdeynny's grasp and stepped away from him, and that PO Burdeynny then grabbed him in a bear hug. Finally, it is undisputed that PO Sorrentino brought § 87(2)(b) to the ground by pulling his legs out from under him.

§ 87(2)(b)
§ 87(2)(g)

He recounted that he pulled his arms out of PO Burdeynny's grasp, stepped back, and asked why he was being ordered to put his hands behind his back. He denied that he struck PO Burdeynny. PO Burdeynny repeated his command for § 87(2)(b) to put his hands behind his back. PO Burdeynny then grasped both of § 87(2)(b) wrists and moved them behind his back before leaning his body weight against him. § 87(2)(b) "tensed" his body and asked what was going on. Additional officers approached, and two of them brought § 87(2)(b) to the ground by pulling his legs out from under him. § 87(2)(b) struck his right shoulder on the ground, aggravating a pre-existing injury and causing him pain. Once at the stationhouse, § 87(2)(b) complained of neck and shoulder pain and was transported to § 87(2)(b).

§ 87(2)(b)
§ 87(2)(a) PBH § 18(6)

As noted below, PO Burdeynny did not have any BWC footage capturing the apprehension of § 87(2)(b) Sgt. Galvez's BWC footage (**BR01**, summarized in **BR07**), beginning at approximately 00:18, shows PO Burdeynny's initial approach of § 87(2)(b). The footage lacks audio during this time due to the BWC's initial audio buffer. The footage confirms that § 87(2)(b) initially backed away from PO Burdeynny and pulled his hands away. At approximately 00:21, § 87(2)(b) pushes PO Burdeynny's left hand away with his right hand as they briefly grapple. At the same time, § 87(2)(b) left hand appears briefly beneath PO Burdeynny's chin, and PO Burdeynny's head jerks backward. PO Burdeynny then grabs § 87(2)(b) upper right shoulder, appears to press him backward against a storefront, and then pulls him forward. Sgt. Galvez gets involved and his BWC footage is obscured until § 87(2)(b) is shown on the ground at 00:26.

Surveillance footage from a camera mounted on a nearby building also captured the incident, beginning at approximately 01:00 (**BR02**, summarized in **BR03**). PO Burdeynny first approaches § 87(2)(b) beginning at approximately 01:08, and PO Sorrentino can be seen running up shortly afterward and pulling § 87(2)(b) legs out from beneath him. The camera is too far from the apprehension to determine from the footage whether § 87(2)(b) struck PO Burdeynny on the chin during the brief period when they grappled.

In his CCRB testimony, PO Burdeynny noted that he specifically identified himself as an officer, told § 87(2)(b) he was under arrest, and directed him to put his hands behind his back when he first approached him (**BR06**). PO Burdeynny recounted that, when § 87(2)(b) pulled his left arm away, he slapped PO Burdeynny's face. PO Burdeynny did not know if § 87(2)(b) had intended to slap him. PO Burdeynny noted that § 87(2)(b) was physically large; § 87(2)(b) is § 87(2)(b) (§ 87(2)(b) taller than PO Burdeynny) and weighs approximately 20 pounds more than PO Burdeynny.

PO Sorrentino testified that he saw PO Burdeynny attempting to grab § 87(2)(b) wrists while § 87(2)(b) flailed his arms (**BR09**). He could not further describe the physical interaction between them, except that it appeared to be a struggle. PO Sorrentino noted § 87(2)(b) large size and explained that he wanted to intervene to protect the safety both of PO Burdeynny and of § 87(2)(b). He decided to pull § 87(2)(b) legs out from under him as opposed to other methods of control because of the extreme height difference between himself and § 87(2)(b) — § 87(2)(b) is § 87(2)(b) taller than PO Sorrentino.

§ 87(2)(g)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b) PO Galvez's BWC footage does appear to indicate that § 87(2)(b) hand came into contact with PO Burdeynny's face during their brief grapple, § 87(2)(g)
§ 87(2)(g)

Patrol Guide Procedure 221-01 states that officers may use force when it is reasonable to place a person in custody or to prevent escape from custody, as well as when it is reasonable to ensure the safety of another officer. Officers must use only the reasonable force necessary to gain control of a subject, and any use of force must be reasonable under the circumstances. In determining the reasonability of force, officers may consider a size disparity between themselves and the subject (**BR10**).

§ 87(2)(g)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

§ 87(2)(g) [REDACTED] § 87(2)(b) [REDACTED]
[REDACTED] § 87(2)(b) [REDACTED] § 87(2)(b) [REDACTED]
[REDACTED] § 87(2)(b) [REDACTED] § 87(2)(b) [REDACTED]
[REDACTED] § 87(2)(b) [REDACTED] § 87(2)(b) [REDACTED]
[REDACTED]

[REDACTED]. Therefore, it is recommended that **Allegations A-B** be closed as **exonerated**.

§ 87(4-b), § 87(2)(g) [REDACTED]
§ 87(2)(b) [REDACTED]

[REDACTED] § 87(2)(b) [REDACTED]
[REDACTED] § 87(2)(b) [REDACTED]
[REDACTED] § 87(2)(b) [REDACTED]
[REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]

[REDACTED]
[REDACTED]

[REDACTED] § 87(2)(b) [REDACTED]
[REDACTED]
[REDACTED]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) [REDACTED] has been a party (**BR12**).
- PO Joseph Sorrentino has been a member of service for five years, and this is the first CCRB complaint to which he has been a subject.
 - PO Sorrentino is a subject of a physical force allegation in case #202004007, which was filed after the incident in this case and which remains under investigation.
- PO Volodymyr Burdeynyy has been a member of service for seven years and has been a subject in four prior CCRB cases and ten allegations, of which one was substantiated:
 - 201801245 involved a substantiated vehicle search allegation against PO Burdeynyy. The Board recommended Command Discipline “A,” and the NYPD imposed Formalized Training.
 - PO Burdeynyy is also a subject in four cases and 29 allegations filed regarding incidents which took place after the incident in this case: 202002492, 202002918, 202004007, 202006750.

Mediation, Civil and Criminal Histories

- § 87(2)(b) [REDACTED] declined to mediate this complaint.
- As of October 13, 2020, the New York City Office of the Comptroller has no record of a Notice of Claim being filed regarding this complaint (**BR13**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]
[REDACTED]
[REDACTED]

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 5

Investigator:	<u>Evan Tims</u>	<u>Inv. Evan Tims</u>	<u>January 3, 2021</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Daniel Giansante</u>	<u>IM Daniel Giansante</u>	<u>January 3, 2021</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date